

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Corwin	Team: Squad #10	CCRB Case #: 201900646	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 01/21/2019 9:10 PM	Location of Incident: In front of 901 Thomas S Boyland Street.	18 Mo. SOL 3/7/2021	Precinct: 73		
Date/Time CV Reported Mon, 01/21/2019 10:02 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/21/2019 10:02 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Edward Whalen	30242	963328	073 PCT
2. POM David Parache	01890	961067	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Edward Whalen	Abuse: Police Officer Edward Whalen refused to provide his name to § 87(2)(b)	A . Unsubstantiated
B . POM David Parache	Abuse: Police Officer David Parache refused to provide his name to § 87(2)(b)	B . Unsubstantiated
C . POM Edward Whalen	Abuse: Police Officer Edward Whalen refused to provide his shield number to § 87(2)(b)	C . Unsubstantiated
D . POM David Parache	Abuse: Police Officer David Parache refused to provide his shield number to § 87(2)(b)	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)		
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 21, 2019, § 87(2)(b) filed the following complaint with the CCRB via the call processing system.

At approximately 9:10 p.m. on January 21, 2019, § 87(2)(b) was stopped in front of 901 Thomas S Boyland Street in Brooklyn by Police Officer Edward Whalen and Police Officer David Parache, both of the 73rd Precinct, for riding his bicycle on the sidewalk. PO Whalen wrote § 87(2)(b) summons number § 87(2)(b) for § 87(2)(b) (**Board Review 01**) and he and PO Parache got back into their police van.

§ 87(2)(b) then approached the passenger side front door and PO Whalen rolled down his window. Both PO Whalen and PO Parache were looking at § 87(2)(b) when he said, “Can I get your names and badge ID numbers?” PO Whalen then allegedly said, “Oh you want my name and badge ID number?” and then rolled up the window. PO Parache then allegedly drove away before either officer provided § 87(2)(b) with their name or shield number (**Allegation A and B: Abuse of Authority: Refusal to provide name:** § 87(2)(g) **Allegation C and D: Abuse of Authority: Refusal to provide shield number:** § 87(2)(g) The officers then drove away from the scene.

PO Whalen activated his body worn camera (BWC) and the video was obtained by the investigation (**Board Review 02**). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Findings and Recommendations

Allegation A: Abuse of Authority: Police Officer Edward Whalen refused to provide his name to § 87(2)(b)

Allegation B: Abuse of Authority: Police Officer David Parache refused to provide his name to § 87(2)(b)

Allegation C: Abuse of Authority: Police Officer Edward Whalen refused to provide his shield number to § 87(2)(b)

Allegation D: Abuse of Authority: Police Officer David Parache refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) provided a sworn statement at the CCRB on January 25, 2019 (**Board Review 04**). PO Whalen was interviewed at the CCRB on March 15, 2019 (**Board Review 05**) and PO Parache was interviewed on the same day (**Board Review 06**).

It is undisputed that PO Whalen and PO Parache stopped § 87(2)(b) for riding his bicycle on the sidewalk and PO Whalen wrote § 87(2)(b) a summons. After giving § 87(2)(b) the summons, PO Whalen and PO Parache got into their police van.

In his statement, § 87(2)(b) said that when the officers got back in their van, PO Whalen was sitting in the front passenger seat and PO Parache was in the driver’s seat. § 87(2)(b) approached

the front passenger side of the van and the one of the officers rolled down the passenger window. PO Whalen and PO Parache were both looking at § 87(2)(b) when he said, “Excuse me, can I get your names and badge ID numbers?” PO Whalen then said, “Oh. You want my name and badge ID?” The passenger window then rolled up and PO Parache drove the van northbound on Thomas S Boyland Street.

In his statement, PO Whalen said that when they presented § 87(2)(b) with the summons, he told § 87(2)(b) that his name, tax number, and command were on the summons and he told § 87(2)(b) his shield number verbally, but he did not recall if § 87(2)(b) ever asked him for his name or shield number. He did not recall if § 87(2)(b) asked PO Parache for his name and shield number and he did not recall PO Parache providing his name or shield number to § 87(2)(b). The officers got back in their van. PO Whalen was in the passenger seat. He could not recall if the windows were up or down. Once the officers were in the van, they did not interact with § 87(2)(b) at all.

After being shown body worn camera footage, PO Whalen explained that he provided the information regarding his name, tax number, and shield number to § 87(2)(b) after he turned off his body worn camera.

In his statement, PO Parache said that when he and PO Whalen were back in their van, § 87(2)(b) was behind the car, looking at the summons or his phone. PO Parache could not recall if the car windows were up or down. He did not recall if he interacted with § 87(2)(b) while he and PO Whalen were inside the van. He did not recall if § 87(2)(b) asked for his name and shield while he was in the van and did not remember if § 87(2)(b) asked for his name or shield throughout the incident. He did not recall if he ever told § 87(2)(b) his name or shield number. PO Parache did not hear if PO Whalen ever gave § 87(2)(b) his name or shield number either.

PO Whalen’s body-worn camera video does not depict § 87(2)(b) asking for either officer’s name or shield number and it does not depict either officer giving § 87(2)(b) this information. The video ends before § 87(2)(b) is given the summons and before the officers get in their van.

§ 87(2)(g)
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§ 87(4-b), § 87(2)(g)
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§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party to (**Board Review 10**).
- PO Whalen has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.
- PO Parache has been a member of service for three years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- On February 22, 2019, this case was sent to mediation and was returned to investigation on March 01, 2019 because § 87(2)(b) later declined to mediate.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A request for any Notice of Claim regarding this incident has been submitted to the New York City Comptroller's Officer, and the results will be added to the case file upon receipt.

Squad No.: 10

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date